

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3173 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Nick Archer

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 3173

By: Archer, Luttrell, and
Waldron of the House

and

Jech of the Senate

FLOOR SUBSTITUTE

An Act relating to energy; creating the Well Repurposing Act; defining terms; allowing Corporation Commission or the Department of Environmental Quality to authorize certain conversion of particular oil and gas wells; authorizing the establishment of fees and financial assurance; requiring certain agreement be in place; making certain distinction for well used for energy storage or geothermal energy development; requiring plugging and abandonment of wells if storage operations cease; authorizing the promulgation of rules; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 950 of Title 52, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Well Repurposing Act".

SECTION 2. NEW LAW A new section of law to be codified

in the Oklahoma Statutes as Section 951 of Title 52, unless there is created a duplication in numbering, reads as follows:

As used in the Well Repurposing Act:

1. "Energy storage" means the ability to capture energy sources at one time for use at a later time;

2. "Geothermal energy development" means the development of geothermal resources; and

3. "Geothermal resources" means the natural heat of the earth in excess of two hundred fifty degrees (250°) Fahrenheit, or the energy, in whatever form, below the surface of the earth present in, resulting from, created by, or that may be extracted from this natural heat in excess of two hundred fifty degrees (250°) Fahrenheit, and all minerals in solution or other products obtained from naturally heated fluids, brines, associated gases and steam, in whatever form, found below the surface of the earth, but excluding oil, hydrocarbon gas and other hydrocarbon substances, and excluding the heating and cooling capacity of the earth not resulting from the natural heat of the earth in excess of two hundred fifty degrees (250°) Fahrenheit, as may be used for the heating and cooling of buildings through an onsite geo-exchange heat pump or similar onsite system.

1 SECTION 3. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 952 of Title 52, unless there is
3 created a duplication in numbering, reads as follows:

4 Either the Corporation Commission or the Department of
5 Environmental Quality (DEQ) may authorize the conversion of an
6 orphaned or abandoned oil or gas well into a facility that provides
7 or supports energy storage or geothermal energy development. When
8 authorizing such a conversion, either the Commission or DEQ may
9 establish fees and financial assurance requirements specific to the
10 energy storage or geothermal development uses. Activities
11 authorized pursuant to the Well Repurposing Act shall not commence
12 until a new written surface damage agreement with the surface owner
13 of record is executed pursuant to Sections 318.2 through 318.9 of
14 Title 52 of the Oklahoma Statutes.

15 SECTION 4. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 953 of Title 52, unless there is
17 created a duplication in numbering, reads as follows:

18 A. An orphaned or abandoned oil or gas well that is authorized
19 by either the Corporation Commission or the Department of
20 Environmental Quality (DEQ) pursuant to the Well Repurposing Act to
21 be used for energy storage or geothermal energy development and that
22 is actively operated for energy storage or geothermal energy
23 development shall not be considered an orphaned or abandoned well
24

1 and shall be considered a well that is being used for beneficial
2 purposes.

3 B. If an orphaned or abandoned oil or gas well authorized for
4 energy storage or geothermal energy development ceases storage
5 operations or geothermal energy development for twelve (12) months
6 or longer, the well shall be plugged and abandoned pursuant to state
7 law and rules issued by either the Corporation Commission or DEQ.

8 C. The Commission and DEQ may promulgate rules to implement the
9 provisions of this act.

10 SECTION 5. This act shall become effective November 1, 2026.

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12 60-2-17117 JBH 03/09/26
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